

IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF KANSAS
AT KANSAS CITY, KANSAS

MICHAEL J. WILLIAMS,	)	
	)	
Plaintiff,	)	
vs.	)	Case No.
	)	
JOSE L. MONJARAS-RIVAS, AND.	)	
MONJARAS TRUCKING, LLC,	)	
	)	
Defendant.	)	
_____	)	

COMPLAINT

COMES NOW the Plaintiff, by and through counsel Brendan P. Lykins and Richard W. James of DeVaughn James Injury Lawyers, and for Plaintiff's claims against the Defendants, alleges and states:

A. PARTIES

1. Plaintiff is a resident and citizen of Jackson County, Missouri.
2. Upon information and belief, Defendant Monjaras Trucking, LLC, is a Kansas limited liability company organized in the State of Kansas. It may be served through its resident agent, Lucas Monjaras, 3025 E. 79th Steet South, Haysville, Kansas 67060, and the members/partners are all citizens of Kansas as they are all domiciled in Kansas.
3. Defendant Jose L. Monjaras-Rivas is a resident and citizen of Sedgwick County, Kansas and may be served at Defendant's residence 3025 E. 79th Street, Haysville, Kansas 67060.

B. JURISDICTION AND VENUE

4. Venue is proper in the Kansas City division of the Kansas District Court of the

Federal District Court.

5. This action is brought pursuant to 28 U.S.C. Section 1332(a) on the basis of diversity of citizenship. The matter is in excess of the sum of Seventy-Five Thousand Dollars (\$75,000.00) exclusive of interest and costs.
6. This Court has jurisdiction over the persons and subject matter.

C. NATURE OF ACTION

7. This is a personal injury action arising out of a motor vehicle collision between Plaintiff and Defendant Jose L. Monjaras-Rivas; Defendant Monjaras Trucking, LLC's employee, agent and/or contract driver that occurred on August 5, 2020 in Butler County, Kansas.

D. CAUSE OF ACTION - NEGLIGENCE

8. At all times relevant herein, Defendant Jose L. Monjaras-Rivas was an employee and/or agent (or contract driver) of Defendant Monjaras Trucking, LLC.
9. Upon information and belief, on August 5, 2020, Defendant Jose L. Monjaras-Rivas was operating a 1998 Freightliner Semi owned by Monjaras Trucking, LLC.
10. Defendant Jose L. Monjaras-Rivas was traveling eastbound on K-254 prior to turning onto SW Tawakoni Road before attempting to drive westbound on K-254.
11. At approximately 0825 hours, Defendant Jose L. Monjaras-Rivas attempted to merge onto westbound K-254 despite multiple cars legally driving westbound on K-254.
12. Defendant Jose L. Monjaras-Rivas attempted to merge from the north shoulder left and onto K-254.

13. The pertinent stretch of K-254 in Butler County, Kansas has a posted speed limit of 70 miles per hour.
14. Defendant Jose L. Monjaras-Rivas failed to yield the right of way and negligently caused a collision with Plaintiff.
15. At all times relevant herein, Defendant Jose L. Monjaras-Rivas was an employee and/or agent of Defendant Monjaras Trucking, LLC and was operating in the course and scope of his employment with Defendant Monjaras Trucking, LLC.
16. Defendant Monjaras Trucking, LLC. is responsible for the negligence of its agents/employees and specifically vehicle driver, Jose L. Monjaras-Rivas, under principles of respondeat *superior* and vicarious liability.
17. Defendant Jose L. Monjaras-Rivas was hired, supervised, and, upon information and belief, trained by Defendant Monjaras Trucking, LLC.
18. The actions and omissions of Defendant Jose L. Monjaras-Rivas and Defendant Monjaras Trucking, LLC (both independently and through driver Jose L. Monjaras-Rivas under Respondent *Superior* and Vicarious Liability) were negligent and careless for the following reasons:
 - a. Inattentive operation of a motor vehicle;
 - b. Failure to yield the right-of-way;
 - c. Failure to keep a proper lookout;
 - d. Failure to use ordinary care;
 - e. Failure to give warning;
 - f. Failure to take evasive action; and
 - g. Careless driving.

19. No act or omission on the part of the Plaintiff caused or contributed to this collision or any of the resulting personal injuries or other damages pursuant to K.S.A. 60-258a.
20. The negligence of Defendants Monjaras Trucking, LLC and Jose L. Monjaras-Rivas directly and proximately caused the motor vehicle collision that injured Plaintiff.
21. Defendants Monjaras Trucking, LLC is a motor carrier and operating under authority through the United States Department of Transportation with an assigned D.O.T. number of 1187097.
22. Upon information and belief, the truck being operated by Defendant Jose L. Monjaras-Rivas was owned, maintained, dispatched, supervised, controlled and repaired by Defendant Monjaras Trucking, LLC and was used as a commercial motor vehicle in both intrastate and interstate business making it subject to the Federal Motor Carrier Safety Administration regulations under 49 C.F.R. Sections 381 et. seq.
23. 49 C.F.R. § 390.3(e)(1) & (2) provide that every driver and employee shall be instructed regarding and shall comply with all applicable regulations contained in the FMCSR.
24. 49 C.F.R. § 390.5 provides that "motor carrier" means a for-hire motor carrier or a private motor carrier. That term includes a motor carrier's agents, officers, and representatives as well as employees responsible for hiring, supervising, training, assigning, or dispatching of drivers.

25. Defendant Monjaras Trucking, LLC was at all material times a "motor carrier" and an "employer" of its driver, Defendant Jose L. Monjaras-Rivas, in regard to the operation of a commercial motor vehicle as defined in 49 C.F.R. §382.107.
26. 49 C.F.R. § 392.2 provides that every commercial motor vehicle must be operated in accordance with the laws, ordinances, and regulations of the jurisdiction in which it is being operated. However, if a regulation of the Federal Motor Carrier Safety Administration imposes a higher standard of care than that law, ordinance or regulation, the Federal Motor Carrier Safety Administration regulation must be complied with.
27. 49 U.S.C. § 14704(a)(2) provides that "A carrier . . . is liable for damages sustained by a person as a result of an action or omission of that carrier. . . in violation of this part."
28. The FMSCRs are located at 49 C.F.R. § 390 et seq. The FMCSRs and the MCA specifically operate under the section 40 C.F.R. § 391.1(a) and (b), which states "(a) The rules in this part establish minimum qualifications for persons who drive commercial motor vehicles, as, for, or on behalf of motor carriers. The rules in this part also establish minimum duties of motor carriers with respect to the qualification of drivers. (b) A motor carrier who employs himself/herself as a driver must comply with both the rules in this part that apply to motor carriers and the rules in this part that apply to drivers." The FMCSRs set forth the applicable minimum industry standard of care including the minimum qualifications for drivers and the minimum duties for drivers under 49 C.F.R. § 391.1(a) & (b).
29. The negligence of Defendant Monjaras Trucking, LLC and their employee/agent,

Defendant Jose L. Monjaras-Rivas, directly and proximately caused the collision and the personal injuries and damages of Plaintiff.

30. As a result of the Defendants' negligence, Plaintiff sustained personal injuries. Plaintiff's damages include past medical expenses, future medical expenses, past and future economic damages and past and future non-economic damages including pain, suffering and mental anguish.

WHEREFORE, Plaintiff requests judgment against Defendants for an amount in excess of SEVENTY-FIVE THOUSAND (\$75,000.00), together with the costs incurred herein and for such other and any further relief this Court deems fair, just and equitable.

Respectfully submitted,

DeVaughn James Injury Lawyers

By: /s/ Brendan P. Lykins

Brendan P. Lykins, #26098

Dustin L. DeVaughn, #16559

blykins@devaughnjames.com

ddevaughn@devaughnjames.com

Attorneys for Plaintiff

DEMAND FOR PRETRIAL CONFERENCE AND JURY TRIAL

COMES NOW Plaintiff requests a jury trial of twelve (12) persons on all issues so triable.

DESIGNATION FOR PLACE OF TRIAL

COMES NOW the plaintiff and designates Kansas City, Kansas as the place for trial of this matter.

By: /s/ Brendan P. Lykins

Brendan P. Lykins, #26098

Dustin L. DeVaughn, #16559

blykins@devaughnjames.com

ddevaughn@devaughnjames.com

Attorneys for Plaintiff